

Smt. Rajeshwari Pandey v. Kanpur Electric Supply Co. Ltd.

High Court of Judicature at Allahabad · Division Bench · 14 November 2013 · WRIT - C No. - 62531 of 2013 · **Writ petition dismissed; review application rejected.**

HEADNOTE

A writ challenging a UPPCL letter on metering before the bush bar was dismissed. The Division Bench held the letter strictly conforms to clause 4.9 of the Electricity Supply Code, 2005, and that clause 4.9(g) only permits an individual resident of a housing society to seek a separate connection from the licensed supplier. The letter, aimed at preventing theft of energy, was in the larger public interest. A later review application was rejected.

FACTUAL SUMMARY

Smt. Rajeshwari Pandey challenged before the Allahabad High Court a letter dated 6 July 2013 of the Director (Commercial), U.P. Power Corporation Ltd., addressed to the Managing Director, on installation of a metering system before the bush bar. Kanpur Electric Supply Co. Ltd. and others were respondents. She relied on clause 4.9(g) of the Electricity Supply Code, 2005, concerning a housing-society resident's right to a separate connection from the licensed supplier.

REUSABLE CONSTRUCTIONS

1. A direction to install the metering system before the bush bar, issued to prevent theft of electrical energy, is in conformity with clause 4.9 of the Electricity Supply Code, 2005. ¶ 1
2. Clause 4.9(g) of the Electricity Supply Code, 2005 only permits an individual resident of a housing society to seek an electrical connection separate from the licensed supplier. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

metering before bush bar; housing-society separate connection

HOLDING

The letter of the Director (Commercial), U.P. Power Corporation Ltd. dated 6 July 2013 on installation of a metering system before the bush bar is strictly in conformity with clause 4.9 of the Electricity Supply Code, 2005. Sub-clause (g) of clause 4.9 only permits an individual resident of a housing society to seek an electrical connection separate from the licensed supplier. The letter, written to avoid theft of electrical energy, is in the larger public interest. The writ petition was dismissed. ¶ 1